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Miss Martin

S E C R E T

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SWNCC 181/4

10 October 1945

Pages 15 - 17, Incl.

STATE-WAR-NAVY COORDINATING COMMITTEE

CUSTODY OF JAPANESE ARCHIVES AND DIPLOMATIC PROPERTY

References: a. SWNCC 181/D
b. SWNCC 181/1

Note by the Secretaries

The enclosure, a memorandum from the State Member, State-War-Navy Coordinating Committee, is circulated for consideration by the Committee.

CHARLES W. McCARTHY
ALVIN F. RICHARDSON
RAYMOND E. COX
Secretariat

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ENCLOSURE

October 9, 1945

MEMORANDUM FROM THE ACTING CHAIRMAN SWNCC TO THE SECRETARY SWNCC

Subject: Japanese diplomatic and consular archives and property—Delay in issuance of directive by General MacArthur.

References: a. SWNCC 181/D
b. SWNCC 181/1

Reports from our Missions abroad indicate clearly that the failure to issue instructions through the Japanese Emperor to Japanese Missions and protecting powers of Japanese interests throughout the world has created a very difficult and anomalous position for our Missions.

These difficulties are highlighted by the fact that in neutral countries such as Afghanistan, Portugal, Sweden, Switzerland, and Vatican City, the Japanese are still at liberty to move about freely and act as if no surrender had occurred. Information received from Mr. Atcheson, Political Advisor to General MacArthur, indicates that some of the most obstructive and recalcitrant Japanese are in the Foreign Office and in the Japanese Missions abroad. It should also be noted that the Japanese archives in the neutral countries in most instances have not even been sealed.

In the countries where Sweden and Switzerland are acting as protecting powers, no access to the archives has been permitted, since no instructions have been received from the Japanese Government, which in turn has received no instructions from the Supreme Allied Commander.

In order to solve the problems which have come about through the delay in issuance of a directive, it is strongly recommended that a telegram be despatched immediately to the Supreme Allied Commander embodying the provisions set forth in the enclosed proposed draft (Appendix).

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Our British, Russian, and Chinese Allies have been approached on the question of the U.S. acting as representative for the four Allied Powers. The only difficulty so far experienced has been the request of the Russians in certain areas for joint custody. However, access of all four Allied Powers is contemplated in the proposed draft telegram (Appendix), and this would appear to answer Russia's objections.

/s/ H. FREEMAN MATTHEWS

Enclosure
Proposed draft telegram to General MacArthur (Appendix)

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APPENDIX

DRAFT OF A PROPOSED TELEGRAM TO GENERAL MACARTHUR

U.S. Missions are faced with difficult situation through non-issuance of instructions to Japanese Missions concerning disposal of diplomatic and consular archives and property. In neutral countries Japanese acting as if no surrender had occurred and archives unsealed. In countries where Sweden and Switzerland acting as protecting powers access to archives not permitted. Accordingly, urgently necessary to issue instructions embodying following provisions:

In neutral countries Japanese Missions immediately should turn over diplomatic and consular archives and property to U.S. representative acting for Allied Powers. However, protection of nationals may be turned over to Sweden and Switzerland since these countries are acting as protecting powers for Japanese elsewhere.

In countries where Sweden or Switzerland are acting as protecting powers, immediate instructions should be issued to turn over physical custody of all diplomatic and consular property and archives to the U.S. representative acting for the Allied Powers. The protecting powers, however, should continue to exercise the routine functions of protection of Japanese nationals.